

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

**CASE OF VAVILOVA v. RUSSIA**

*(Applications nos. 28495/18 and 4472/19 – see appended list)*

JUDGMENT

STRASBOURG

13 October 2022

*This judgment is final but it may be subject to editorial revision.*

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

**In the case of Vavilova v. Russia,**

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President,*
Andreas Zünd,
Frédéric Krenc, *judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 September 2022,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The applicant was represented by Ms Ye. Pershakova, a lawyer practising in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

4. The relevant details of the applications are set out in the appended table.

5. The applicant complained of the unlawful detention (deprivation of liberty). She also raised other complaints under the provisions of the Convention (see the appended table).

# THE LAW

## I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicant complained that the administrative escorting and arrest procedures and her ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:...

> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted to conclude that recourse to such procedures was justified, as required by Russian law. It concludes that that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicant's arrest and detention were not "in accordance with a procedure prescribed by law".

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

## III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicant submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, and *Frumkin v. Russia*, no. 74568/12, 5 January

2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies).

## IV. REMAINING COMPLAINTS

12. The applicant also raised other complaints under Article 5 of the Convention.

13. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

## V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia* [Committee], no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sum indicated in the appended table.

16. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

## FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty), as set out in the appended table below, and the other complaints under well-established case-law of the Court (see also the appended table), admissible and further complaints under Article 5 of the Convention inadmissible;

3. *Holds* that there has been a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty) (see appended table below);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicant, within three months, the amount indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 October 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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| Viktoriya Maradudina | Darian Pavli |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

| Application no. Date of introduction | Applicant's name Year of birth | Representative's name and location | Start date of unauthorised detention | End date of unauthorised detention | Specific defects | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|
| 28495/18<br>05/06/2018<br><br>and<br><br>4472/19<br>28/12/2018 | **Natalya Anatolyevna VAVILOVA**<br>1976 | Pershakova Yelena Yuryevna<br>Moscow | 10/05/2018<br><br>09/09/2018 | 10/05/2018<br><br>10/09/2018 | Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br>Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017),<br>Detention as an administrative suspect: no written record of the administrative arrest (Art. 27.4 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).<br>Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019). | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in all sets of the administrative proceedings (as described for Article 11 below);<br>Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies –<br>Manifestation with distribution of information bulletins in support of Mr Navalnyy in Perm on 02/09/2017; article 20.2 § 5 of CAO; fine of RUB 10,000; final decision - Perm Regional Court 06/12/2017;<br>Manifestation with distribution of balloons in support of Mr Navalnyy in Perm on 14/10/2017; article 20.2 § 2 of CAO; community service for 24 hours; final decision - Perm Regional Court 07/12/2017;<br>Meeting with Mr Navalnyy in Perm on 24/11/2017; article 20.2 § 2 of CAO; fine of RUB 25,000; final decision - Perm Regional Court 08/02/2018<br>Manifestation against President Putin in Perm on 05/05/2018. Conviction under Article 20.2 § 8 of CAO with fine of RUB 200,000. Perm Regional Court, 28/06/2018.<br>Manifestation against Pension Reform in Perm on 09/09/2018; Conviction under Article 20.2 § 8 of CAO with 120 hours' compulsory work. Perm Regional Court, 19/10/2018. | 3,900 |

[1] Plus any tax that may be chargeable to the applicant.